

26NWCV00737 26NWCV00737

County: los-angeles

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Case Number: 26NWCV00737 Hearing Date: August 17, 2026 Dept: C

PALOMBI, SR.,

et al. vs SEQUOYAH, INC., et al.

CASE NO.: 26NWCV00737

HEARING: 8/17/26 @ 9:30 AM

#13

TENTATIVE ORDER

I.

Defendant ELITE PROPERTY BROKERS INC.'s Demurrer is SUSTAINED with 20 days leave to amend.

II.

The Case Management Conference scheduled for September 15, 2026 is ADVANCED to today and CONTINUED to November 17, 2026 at 9:00 a.m. in Dept. SE-C.

Moving

Party to give NOTICE.

This

case concerns an assault that took place at a restaurant where the alleged culprit was attending a company gathering.

The issue presented is whether Plaintiffs sufficiently allege that the alleged culprit was acting in the course and scope of employment so as to trigger

liability for the company. The Court concludes that Plaintiffs have not done so.

Defendant

Elite Property Brokers Inc. (EPB) demurs to Plaintiffs Joseph Anthony Palombi Sr., Joseph Anthony Palombi Jr., Iliana Fragancia Palombi, and Jessica Denise Palombi's (Plaintiff) First Amended Complaint (FAC) as to the first, second, and fourth causes of action for assault, battery, and intentional infliction of emotional distress, respectively, on the grounds that Plaintiffs fail to state facts to state a claim and the allegations are unclear, vague, and ambiguous pursuant to Code Civil Proc., §430.10(e) and (f).

Background

Plaintiffs allege that on May 23, 2024, Plaintiffs went to Dal Rae Restaurant in Pico Rivera, California, to celebrate (a) Joseph Sr.'s birthday and (b) Jessica's upcoming wedding, which was scheduled two days later. (FAC, ¶ 13.)

Within approximately 10 minutes after Plaintiffs were seated, an adjacent group of eight individuals (four females and four males), including Defendant Jose Eric Perez (Perez), was seated in the larger booth next to Plaintiffs. From the moment the group arrived, it was apparent to Plaintiffs that members of the group were already intoxicated, loud, and volatile. (FAC, ¶ 16.)

At approximately 9:00 p.m., as Plaintiffs were leaving their booth area, Joseph Sr. had to turn toward the adjacent booth due to the proximity of the aisle/exit path. Joseph Sr. observed a female member of the adjacent group who appeared distressed and, in a calm manner, asked her words to the effect of, "Are you okay?" (FAC, ¶ 22.) In response, Defendant Perez stood up from the table and angrily told Joseph Sr. to "Mind your own fucking business," and aggressively charged toward Joseph Sr. Jessica moved between Perez and Joseph Sr. Perez violently shoved Jessica out of the way, causing her to be thrown aside. Jessica was holding a to-go container, which flew and spilled. Perez struck Joseph Sr. with significant force. Joseph Sr. fell backward into nearby tables, suffered a sharp blow to his head, and lost consciousness. While Joseph Sr. was unconscious or semi-conscious, Perez kicked Joseph Sr. in the head twice, causing further injury and continued to kick and hit Joseph Sr.'s body while he lay stiff and

unable to fight back. Jessica continued to attempt to get Perez to stop beating her unconscious father. (FAC, ¶¶ 23-26.)

Plaintiff alleges Perez is the employee, sole officer, and sole director of EPB and was acting within the scope of his employment at the time of the incident. (FAC, ¶¶ 10-11.)

Based thereon, Plaintiffs allege the following causes of action:

1. Assault
2. Battery
3. Negligence
4. Intentional Infliction of Emotional Distress

Meet and Confer

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The Court finds that Defendant’s counsel adequately made an attempt to meet and confer. (Howard Decl., ¶ 1.)

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts

sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (*S. Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

1st,

2nd, and 4th CAUSES OF ACTION; Vicarious Liability

California

Courts have long held that “respondeat superior” liability only applies if the alleged tortious conduct was a “foreseeable” consequence of the employee’s employment. (*Hinman v. Westinghouse Elec Co.* (1970) 2 Cal.3d 956, 960; *Rogers v. Kemper Constr. Co.* (1975) 50 Cal.App. 3d 608; *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291.)

Defendant

argues that the first, second, and fourth causes of action fail because Plaintiffs offers only bare legal conclusions that Perez was acting “in the course and scope” of his employment. Defendant contends that there is no statement of any basis for the claims against Elite Property Brokers – only that Perez appears to be employed by Elite Property Brokers and the Plaintiffs wish to inflict maximum harassment upon him by needlessly suing his employer.

In

opposition, Plaintiffs argue that at his stage, the Court must accept the FAC’s agency, course-and-scope, and official-function allegations as true. (Dones

v. Life Ins. Co. of N. Am. (2020) 55 Cal. App. 5th 665, 685; Kiseskey, 144 Cal. App. 3d at 230.) The FAC also alleges ratification and adoption, which the demurrer does not analyze. (FAC ¶¶ 37, 46.)

The

Court finds that Plaintiffs have failed to sufficiently allege facts to support the causes of action under vicarious liability. An employer will not be held vicariously liable for an employee's malicious or tortious conduct if the employee substantially deviates from the employment duties for personal purposes. (Juarez v. San Bernardino City Unified School District (2024) 106 Cal. App. 5th 1213, 327.) In cases involving assaults by employees, imputation of liability follows where the employment in some way involves the risk of force being used, that is, where the act is connected with the employment. (Golden West Broadcasters, Inc. v. Superior Court (1981) 114 Cal. App. 3d 947.) Moreover, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when 'the facts are undisputed and no conflicting inferences are possible.' [Citation.] In some cases, the relationship between an employee's work and wrongful conduct is so attenuated that a jury could not reasonably conclude that the act was within the scope of employment. (Ayon v. Esquire Deposition Solutions, LLC (2018) 27 Cal.App.5th 487, 494–495.)

Here,

reading the allegations liberally and in context, Plaintiffs allege (1) Perez was Defendant's employee, sole officer, and sole director; (2) he was acting within the course and scope of that employment; (3) he was present at Dal Rae Restaurant as part of an official Defendant function; and (4) in his capacity as Defendant's sole officer and director, he ratified and adopted the pleaded conduct. (FAC ¶¶ 10-11, 37, 46.) Although these allegations are incorporated into each challenged cause of action, Plaintiffs fail to allege facts that demonstrate the employment in some way involves the risk of force being used, that is, where the act is connected with the employment. (Golden West Broadcasters, Inc. v. Superior Court (1981) 114 Cal. App. 3d 947.) There are no facts for the Court to discern what Perez's function was as an employee of Defendant and whether it was reasonably foreseeable that in the course of his employment a physical altercation may occur.

Accordingly, the demurrer to the first, second, and fourth causes of action is SUSTAINED with 20 days leave to amend.